RESOURCESNSW



Chain Of Responsibilities (COR) Management System

Plan

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1. INTRODUCTION

Chain of Responsibility (CoR) laws provide that every party in the heavy vehicle transport supply chain must ensure the safety of persons associated with their transport activities.

All parties who influence, direct or control transport operations in the supply chain share responsibility for the safety of heavy vehicle operations, even if they have no direct role in driving or operating a heavy vehicle.

This responsibility entails an obligation to eliminate or minimise potential harm or loss (risk) by doing all that is reasonably practicable to ensure the safe and legal transport of goods.

CoR COMPONENTS

Component	Description
Fatigue Management	Each person in the CoR must take all reasonable steps to ensure the driver of a fatigue-regulated heavy vehicle does not drive while impaired by fatigue or, breach road transport laws relating to fatigue.
Speed Management	Each person in the CoR must take all reasonable steps to ensure that all journeys can be completed in a timeframe that allows completion within legal speed limits.
Mass	Each person in the CoR must take all reasonable steps to ensure that loads are within the maximum legal gross vehicle and axle load limits and, that loads are within the maximum load mass of any freight container
Dimension	Each person in the CoR must take all reasonable steps to ensure that loads remain within the maximum legal height, length, width and overhang limits.
Load Restraint	Each person in the CoR must take all reasonable steps to ensure that loads are secured within freight containers and within/on vehicles in a manner that prevents the load moving, falling off, or causing the vehicle to become unsafe.
Vehicle Maintenance	Each person in the CoR must take all reasonable steps to ensure that vehicles remain compliant with applicable heavy vehicle standards and, are properly maintained in a roadworthy condition.

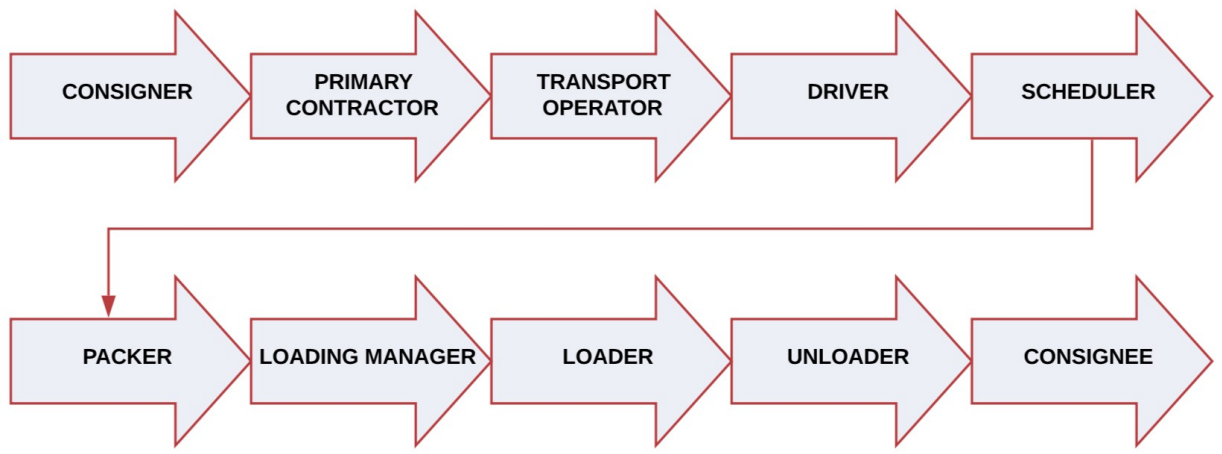


Figure 1. Chain of Responsibility Flow Chart

1.1 SCOPE

This CoR Management Plan applies to persons who work for RNSW, irrespective of their individual employment arrangement. Including workers, independent contractors, work experience students, trainees, apprentices and volunteers.

This CoR Management Plan always remains the property of RNSW. Copyright applies to this CoR Management Plan, which contains sensitive company information.

Do not under any circumstances allow the unauthorised copying of this CoR Management Plan or give it to people outside of this organisation.

1.2 REVIEW PROCEDURE

Management will review the policies, procedures and associated forms as required. The review schedule will be directed in response to organisational and/or legislative changes and requirements. The reviews will be undertaken in consultation with workers, health and safety representatives and other relevant parties. All relevant persons will be made aware of changes made as a result of the review.

All policies, procedures and associated forms will be reviewed if:

- it is identified that there are changes in the workplace that may affect policies, procedures or forms;
- it is identified that the policies, procedures or forms is not effective;
- there are legislative changes that affect the policies, procedures or forms;
- there is a serious incident or dangerous occurrence.

All policies, procedures and forms will be reviewed at least annually.

1.3 REFERENCES AND APPLICABLE DOCUMENTS

References

- Heavy Vehicle National Law.
- Heavy Vehicle (Fatigue Management) National Regulation Heavy Vehicle (General) National Regulation.
- Heavy Vehicle (Mass, Dimension and Loading) National Regulation.
- Heavy Vehicle (Vehicle Standards) National Regulation
- AS/NZS ISO 45001:2018 Occupational Health and Safety Management Systems
- RNSW HSEQ Management System
- RNSW Drivers Manual

Definitions

Act: A law (legislation) passed and enacted by a state or territory parliament.

Code of Practice is a practical guide to achieving the standards of WHS required under legislation. A COP applies to anyone who has a duty of care in the circumstances described in the code. Mostly, following an approved COP would achieve compliance with the health and safety duties in the relevant WHS Act, concerning the subject matter of the code.

Contractor: A contractor is any person (other than an RNSW worker) or a company performing work for, or on behalf of RNSW.

Controlled document or record: Any document for which distribution and status are to be kept current by the issuer to ensure that authorised users have available the most up to date version.

Worker: A person employed under a contract of employment or contract of training.

Employer: An Employer is an individual, a company, body corporate, partnership, unincorporated association, franchising operation or not-for-profit organisation, in the private or public sector who has one or more workers. Occupational Health and Safety Act 2004: Information for Employers.

Hazard: A hazard is a source or a situation with a potential for harm in terms of human injury or illness, damage to property, damage to the environment, or a combination of these.

Incident: An incident is any unplanned event resulting in, or having a potential to result in injury, ill health, damage or loss.

ISO 45001: International audit tool system intended to audit WHS Management Systems and provide international WHS benchmarks.

Organisation: The person or group of people with responsibilities, authorities and relationships to achieve WHS objectives. E.g. Employer, Chief Executive Officer (CEO), Person Conducting a Business or Undertaking (PCBU), etc.

Person who Conducts a Business or Undertaking: The definition of a PCBU is similar to an Employer. However, it is termed PCBU to ensure other relevant relationships (such as someone who commissions work, or a landlord) are recognised under the WHS legislation.

Plant includes:

a. Any machinery, equipment, appliance, implement and tool; and
b. Any component of any of those things; and
c. Anything fitted, connected or related to any of those things.

Reasonable suspicion: is defined generally as suspicion drawn from specific, contemporaneous, articulable observations concerning the appearance, behaviour, and speech or body odours of the individual or reliable information from another source.

Regulations: Regulations are law that is created under the authority of an Act. Regulations are subordinate to an Act and are the secondary level of law covering, in this case, health and safety in the workplace.

Risk: is a combination of the likelihood and consequences of any injury or harm occurring.

Uncontrolled document: These are documents that are produced for information only and are not formally reviewed, maintained, subject to change review, or approved before release. They do not have traceable distribution. They should be identified as "uncontrolled". Note: A controlled document may be "uncontrolled" once printed, but must be labelled as such.

Worker**:** is a person, who carries out work in any capacity for an Organisation, including work as:

- An employee, or
- An outworker, or
- An apprentice or trainee, or
- A student gaining work experience, or

- A volunteer, or
- A person of a prescribed class, or
- A contractor or subcontractor, or
- A worker of a contractor or subcontractor, or
- a worker of a labour-hire company assigned to work in a person's business or undertaking.

Workplace – means a place where work is carried out for a business or undertaking and includes any place where a worker goes or is likely to be while at work. A workplace includes:

a. A vehicle, vessel, aircraft or other mobile structure; and
b. Any waters and any installations on land, on the bed of any waters or floating on any waters.

2. HEALTH AND SAFETY

2.1 CHAIN OF RESPONSIBILITY POLICY

RNSW is dedicated to providing all workers with a workplace that is, as far as is reasonable, safe and without risks to health and safety.

We recognise its moral and legal obligations under the Heavy Vehicle National Law (HVNL) to provide a safe workplace. The organisation commits to:

- ensuring that our work processes, practices and contracts do not provide any incentive or encouragement to any party in the chain, to breach the CoR laws;
- identify, assess, evaluate, and control risk associated with all components of the supply chain
- manage compliance with speed, fatigue, mass, dimension, load restraints and vehicle standards & maintenance
- provision and maintenance of a work environment that is safe and without risks to health
- maintain physical infrastructure, including buildings, plant and equipment, in a safe condition;
- comply with legislative requirements, current industry standards and co-operation with Regulatory bodies, as far as practicable
- aim for best practice systems of work
- encourage all workers to report information concerning safety and breaches of the CoR
- setting measurable targets to ensure continued improvement reflected in accountability/key performance indicators at all levels
- continually improving safety performance and conducting safety management reviews
- WHS information, instruction, training and supervision to workers, contractors, clients and visitors to ensure safety
- document and record actions are taken to manage compliance with this manual.

2.2 CHAIN OF RESPONSIBILITIES DUTIES

RESPONSIBILITIES

Management is committed to:

- ensuring systems are in place to manage health & safety and, all requirements and obligations of the HVNL
- compliance with legislative requirements, current industry standards and co-operation with regulatory bodies, as far as is reasonably practicable
- ensuring executive decisions do not influence the conduct of the corporation to breach the law
- provide effective guidance in regard to meeting CoR requirements
- ensuring business practices and decisions do not require or encourage drivers to:
  - exceed the speed limits
  - exceed regulated driving hours
  - fail to meet the minimum rest requirements
  - drive while impaired by fatigue
- measurable targets to ensure continued improvement reflected in accountability/key performance indicators at all levels
- consultation with workers and other parties to improve decision-making
- remaining informed of business performance in regard to CoR
- distribution and communication of critical information and safe work procedures
- information, training and supervision to workers, contractors, clients and visitors to ensure safety
- review and assessment of policies.

Operator/manager/scheduler:

- complying with Health and Safety, CoR policies, procedures and training requirements
- ensure all workers work safely and comply with business policies and procedures
- ensure risk management activities are carried out and regularly reviewed
- reviewing investigation reports and other reports involving workers to ensure adequate corrective actions have been initiated to prevent recurrence
- reviewing compliance with policies and procedures
- ensure rosters and schedules do not require drivers to exceed regulated driving hours or speed limits
- routes are suitably planned with consideration of potential traffic issues and other unexpected delays
- keep records of drivers' work and rest times
- ensure drivers do not work while fatigued and maintain their correct work and rest schedules
- schedulers comply with all of their obligations with reviews are regularly undertaken
- drivers are provided with relevant documentation including a complying Container Weight Declaration before commencing a journey
- ensure vehicles are regularly maintained, and if speed limiters are fitted, they are functioning properly
- delivery requirements do not require or encourage drivers to:
  - exceed the speed limits
  - exceed regulated driving hours
  - fail to meet the minimum rest requirements
  - drive while impaired by fatigue

Consignor/consignee:

- ensure loads do not exceed vehicle mass or dimension limits
- ensure loads can be carried securely
- a Valid Container Weight Declaration is available
- delivery requirements do not require or encourage drivers to:

- exceed the speed limits
- exceed regulated driving hours
- fail to meet the minimum rest requirements
- drive while impaired by fatigue.

Loading manager/loader/packer:

- load vehicles in a way that does not exceed mass or dimension limits
- load vehicles in a way that ensures vehicle remain stable while travelling
- load documentation is accurate. Ensure drivers moving freight containers have a valid Container Weight Declaration
- goods packed in a freight container do not cause the container's gross weight or safety approval rating to be exceeded
- all loads are securely restrained with appropriate restraint equipment (appropriate, serviceable and well-maintained loading and restraining equipment is available)
- allocate reasonable time for loading and unloading slots
- check documentation about the vehicle's load is not false or misleading
- goods are marked correctly
- must ensure to never ask, require or direct activities you know will breach the law
- rest facilities are provided to allow drivers to take rest while waiting to load/unload
- loading practices do not require or encourage drivers to:
  - exceed the speed limits
  - exceed regulated driving hours
  - fail to meet the minimum rest requirements
  - drive while impaired by fatigue.

Drivers are expected to:

- take reasonable care for the health and safety of themselves and others at work
- not drive while fatigued and comply with the relevant fatigue management work and rest laws and procedures
- ensure driven vehicle does not exceed mass or dimension limits
- ensure vehicle load is appropriately and securely restrained
- making sure they are medically fit to drive
- ensure the vehicle being driven is roadworthy and well maintained
- keep full and accurate records as required by law and company procedures.

All other workers are expected to:

- take reasonable care for the health and safety of themselves and others at work
- cooperate with us to enable compliance with WHS legal obligations
- participate in consultative arrangements
- assist management in meeting WHS targets/key performance indicators
- participate in return to work programs
- comply with all reasonable instructions from managers concerning health and safety issues at work
- ensure that they know how to use equipment safely and that they correctly use all equipment.

2.3 SAFE DRIVING PLAN

OBJECTIVE

To develop and implement Safe Driving Plans (SDP) for drivers where the travel distance will exceed 400km in any one shift.

POLICY

RNSW is committed to providing drivers with a work environment that is safe and without risks, as far as is reasonably practicable. The development of a Safe Driving Plan allows drivers to have information on the intended route and times allowed to ensure sufficient rest breaks are taken.

SAFE DRIVING PLAN PROCEDURE

Safe Driving Plan will include, at least, the following:

- identify pick-up and drop-off locations
- identify the timeframe in which work is required to be performed
- identify preferred travel routes
- identify how the number of hours and work time will be limited to prevent fatigue and how this will be enforced
- detail how work will be performed including rest break times to meet legislative requirements
- methods to ensure drivers are not fatigued or under the influence of drugs/alcohol
- develop journey plans for remote areas, such plans to include ETA at the destination, and action to be taken if arrival is overdue.

The **RNSWF032 Safe Driving Plan** will be documented, and a copy of the plan kept by drivers and dispatch managers. The drivers must ensure they always follow the plan. If any deviation from the plan is required, drivers must contact their supervisors.

The **RNSWF032 Safe Driving Plan** will be developed in consultation with drivers and be updated/reviewed regularly.

2.4 DRIVER FATIGUE MANAGEMENT

PURPOSE

The purpose of this policy is to identify and reduce risks concerning driver fatigue and to provide adequate resourcing to prevent fatalities, injury or illness caused by fatigue.

POLICY

RNSW believes driver fatigue can cause fatalities or serious injuries to workers (including contractors and workers of contractors), visitors or members of the public. As such, they are committed to protecting the health, safety and welfare of our workers by ensuring drivers do not drive if they are impaired by fatigue.

Driver fatigue can be defined as feeling tired, drained or exhausted. Fatigue influences an individual's physical and mental and emotional state. When feeling fatigued, alertness is reduced, which can lead to poor judgments, slower reactions to events and decreased motor skills. Fatigue can also lead to long term health problems in some individuals.

The organisation will:

- identify and assess those aspects of relevant drivers that may lead to fatigue and/or the commission of a fatigue-related offence
- develop and implement a documented Safe Driving Plans in the following situations
  - overnight shifts
  - potential for extended shifts
  - where fatigue has been identified as a potential health and safety risk
- Safe Driving Plans will be developed in consultation with relevant persons
- adequacy of the Safe Driving Plan will be reviewed every 6 months, or if an incident or near miss occurs concerning fatigue. The plan will then be monitored and reviewed accordingly
- ensure drivers do not work more than the maximum work hours or restless than the minimum rest hours in a certain period set out by law

RESPONSIBILITIES

The organisation has a responsibility to:

- ensure the health and safety of drivers and other workers concerning fatigue
- have a Safe Driving Plan in place
- consult with drivers and any other persons who may be exposed to fatigue-related risks
- identify and assess hazards arising from worker fatigue
- eliminate or control fatigue-related risks
- provide information and instruction on managing fatigue risks
- provide supervision of work practices to reduce worker fatigue

Drivers, and others, have a responsibility to:

- cooperate with Safe Driving Plans and other relevant work health and safety systems
- carry out work according to fatigue management policy and safe work procedures
- consult with relevant managers and supervisors concerning fatigue management
- report any hazards and risks relating to fatigue
- participate in fatigue risk management activities

- ensure that their behaviour does not create or increase fatigue risks, and do their best to remain fit for work
- refuse work when impaired by fatigue.

A **RNSW033 Fatigue Risk Assessment** will be carried out at least annually. The risk assessment will look carefully at hazards related to fatigue, assesses the resulting risk levels and determines how to eliminate or reduce and control those risks.

A risk assessment will involve:

- input from workers via consultation
- review of incidents to determine if fatigue has been a contributing risk facto
- use of relevant resources and information (e.g. industry guides, Codes of Practice, guides produced by regulatory bodies)
- documenting the risk assessment.

Risk Factors may include:

- travel times from depot to pick up and delivery
- inadequate sleep and inadequate rest breaks
- insufficient training
- loading and unloading procedures
- individual worker traits - young workers, workers returning from injuries, inexperienced workers
- work schedules
- non-work factors - family commitments, second jobs, lifestyle

Work practice indications of fatigue include:

- increased errors and loss of concentration
- impaired coordination
- compromised judgement
- slower reaction times.

DRIVER FATIGUE MANAGEMENT PROCEDURE

Work schedules will be prepared concerning the following:

- hazards, risks and controls, as determined by a risk assessment
- previous work hours/required break-away times
- times required to perform tasks safely
- legislative requirements for maximum work hours
- sufficient rest breaks, including personal activities such as washing, eating meals and travelling to/from work
- shift work (especially rotating shifts)
- reduce night shift work where possible; and
- limiting the amount of allowable over-time, shift swapping and on-call duties as required to reduce fatigue.

Control measures will be implemented as required to reduce risks of fatigue in the workplace, such as:

- provide training to allow multi-skilling and opportunities for job rotation
- use alarms, buddy system or monitoring for isolated/remote workers
- eliminating or reducing and controlling identified fatigue risk factors whenever possible
- rotating workers and/or limiting the amount of time per shift the individual workers spend on physically and/or mentally sustained and demanding jobs;
- monitoring the work environment and designing adequate controls for environmental and workplace conditions
- ensure an adequate amount of time, number of workers and resources are allocated to jobs
- ensuring there is a system available for supervisors to reschedule jobs/tasks if fatigue becomes a problem
- maintaining adequate consultation and communication with workers regarding fatigue
- allowing for essential family commitments and unexpected additional carer duties for workers
- providing information and education to workers regarding non-work-related fatigue risk factors
- encouraging workers to report non-work-related fatigue risk factors to their supervisor/employer

The following (standard) maximum hours of work and minimum hours of rest are followed.

Operating standards for hours of work and rest	
A solo commercial vehicle driver	
Minimum continuous non-work time in any 5.1/2 hours	15 continuous minutes' rest time
Minimum continuous non-work time in any 8 hours	30 minutes' rest time in blocks of 15 continuous minutes
Minimum continuous non-work time in any 11 hours	60 minutes' rest time in blocks of 15 continuous minutes
Minimum continuous non-work time in any 24 hours	7 hours
Minimum continuous periods not working in any 7 days	6 periods of a minimum seven hours' rest between 10pm on a day and 8am on the next day
Minimum 24 hours' continuous periods not working in any 28 days	4 periods

Driving with a relief driver- two-up driver (hrs. for each driver)	
Minimum continuous non-work time in 5 ½ hour period	15 continuous minutes' rest time
Minimum continuous non-work time in any 8 hours	30 minutes' rest time in blocks of 15 continuous minutes
Minimum non-work time in 24 hours	5 continuous hours' stationery rest time
Minimum continuous non-work time in any 52 hours	10 continuous hours' stationery rest time
Minimum continuous non-work time in any 7 days	24 hours' stationary rest time in blocks of at least 7 continuous hours of stationary rest time
Minimum continuous non-work time in any 14 days	2 x-night rest breaks and 2 x-night rest breaks taken on consecutive days

Drivers must ensure they are familiar with the early signs of fatigue. Drivers must stop their vehicle, report any symptoms of fatigue to their supervisor and ensure a rest break of sufficient time is taken.

Drivers must complete a Logbook regardless of distance travelled. Information to be recorded includes:

- whether they are working under the Standard hours (or others such as approved Alternative Fatigue Management Scheme (AFMS)
- work hours
- times when changing from work to rest hours.

TRAINING

Training and education include coverage of issues such as:

- an explanation of what fatigue is and how it affects us;
- the physical, psychological and practical signs of fatigue;
- possible causes and effects of fatigue;
- risks involved with working while fatigued; and
- the Safe Driving Plan and risk assessments.

2.5 SPEED MANAGEMENT

OBJECTIVE

To outline the steps to eliminate, reduce or manage the risk of driver speeding, including components relating to driver behaviour and vehicle management

POLICY

Drivers are more at risk of being involved with or causing an accident when driving over the speed limit. RNSW is committed to the provision of a safe workplace for its drivers, and this duty extends to protecting the public from unnecessary risks.

Increased speed means not only an increased risk of crashing but also increased severity if a crash occurs. It is an offence for any vehicle to travel faster than the speed limit. Speedometer tampering is also an offence. Penalties, including fines and demerit points, are incurred for speeding and speed tampering infringements.

There are two types of speeding:

1. Where a vehicle travels faster than the posted speed limit;
2. Where a driver travels within the speed limit but because of road conditions (e.g. fog or rain), this speed is inappropriate.

We will ensure:

- drivers complete a work Logbook regardless of distance travelled
- vehicles fitted with speed Limiters are regularly checked and serviced to ensure that they are working correctly and meet the required standard
- driving schedules are prepared concerning the following:
  - ensuring that speed compliance is included as a contractual requirement
  - legislative requirements for maximum work hours
  - legislative requirements for standard hours (solo or 2-up driving), minimum rest time hours, or alternative accreditation system hours etc.
  - consultation with drivers to confirm they can meet deadlines safely and without speeding
  - planning for unexpected delays in completing journeys without speeding
  - sufficient rest breaks, including personal activities such as washing, eating meals and travelling to/from depot
- drivers are educated about not speeding and reporting speed related issues such as faults with equipment, infringements or non-conformance
- drivers are provided with regular reminders about the importance of working together to ensure compliance with laws, including toolbox sessions, internal newsletters or information distributed with payslips.

Customers/clients will be advised of how unreasonable schedules and deadlines are no longer legal and outline to them how schedules are formulated to enable drivers to meet deadlines safely and without speeding.

RESPONSIBILITIES

All drivers are responsible for working safely and for following reasonable directions in respect of the Driver's CoR, the Speed Management Procedure and the reporting systems while working at RNSW.

Drivers are required to:

- drive safely and comply with statutory speed limits and road rules at all times
- comply with the Driver CoR and the Speed Management Procedure
- use provided training and information to work safely
- respond to changing on-road conditions and hazards, delays or rescheduling for loading/unloading, mechanical problems, changing traffic and route conditions
- communicate with the base regularly and when required due to changing on-road circumstances
- ensure there are no unauthorised modifications to, or any tampering with the monitoring systems, records, notifications or reports associated to the vehicles they drive and/or maintain and/or monitor
- complete a work Logbook regardless of the distance travelled for each trip
- notify HSEQ Manager of any infringements or non-conformances
- notify HSEQ Manager of any accidents and/or incidents
- compete with any other documentation as may be required from time to time concerning speed management.

Management is responsible for:

- informing drivers and others about the requirement to actively participate in speed management activities and to co-operatively follow the Speed Management Procedure
- ensuring that all drivers are adequately trained in speed management strategies, policies and procedures
- ensuring all drivers understand and are trained in how the IVMS system works (including why it is used) and how to operate this IVMS system as a driver
- monitoring the IVMS
- managing all Non-Conformance Reports and complaints and ensuring all corrective actions are completed in a timely and appropriate fashion
- consulting with drivers regarding infringements and non-conformances
- maintaining records required by relevant WHS legislation relating to driver safety and speed management
- ensure that scheduling considers distance, average lawful speed, possible traffic or loading delays and required rest breaks.

HSEQ Manager is responsible for:

- conducting an annual speed and fatigue risk assessment of drivers
- ensuring the implementation of appropriate hazard controls and mitigation of risks identified in an annual speed and fatigue risk assessment within a designated timeframe
- scheduling and supervising annual speed limiter check on all vehicles fitted with speed limiters
- ensuring that any annual speed limiter checks are carried out by appropriately qualified/certified persons and that adequate records are maintained of all speed limiter's maintenance and servicing
- recording, reporting and notifications as required for the conduct of and the outcomes of any speed and fatigue risk assessments and the speed limiter checks.

Admin is responsible for:

- any recording, reporting and notifications as required for the conduct of a non-compliance report and address of corrective actions resulting from the report
- managing any issues arising from the completion or content of Driver's Logbooks
- management and consultation concerning third party commercial arrangements
- review of the Speed Management Procedure when required

SPEED MANAGEMENT PROCEDURE

All drivers must:

- before work - If unfit for work, do not drive vehicle - notify Management
- when working - If tired, and fitness for work is affected, call in for an adjusted Estimated Time of Arrival (ETA) at the next location
- when driving - Make sure that they are aware of the maximum legal travel time
- attend toolbox talks and meetings as required
- consult with management regarding schedules and their ability to meet the schedule timelines safely and lawfully
- report scheduling problems, new road works, major accidents, traffic delays on regular routes
- report infringements and/or non-conformances as required
- adhere to corrective actions arising from infringements and non-conformance

Scheduling:

- advises customers/clients that unreasonable schedules and deadlines are not legal. Documents detailing when such discussions took place and who with is maintained by (insert name or title here)
- ensures that speed compliance is included as a contractual requirement when developing contracts
- consults drivers regarding schedules to get their input and confirmation they can safely and lawfully meet them
- encourages drivers to report scheduling problems, new road works, major accidents, traffic delays
- build flexibility into the schedule to allow for unexpected delays such as flat tyres, load checking and/or adjustments.
- develop procedures for drivers who encounter unexpected delays to complete their journey without speeding

Non-conformance Reports:

- data from the IVMS is assessed for non-conformance weekly
- driver's Logbooks are checked for non-conformance weekly
- all non-conformances, including overruns and speeding, are written up on in **RNSWF029 NCR Register**.
- non-conformance matters are responded to via consultation with drivers and any other relevant person/s
- during the consultation process, appropriate and timely corrective actions are decided upon and recorded in **RNSWF029 NCR Register**
- corrective actions are then undertaken in an appropriate manner and timeframe by the person/s responsible for the actions
- corrective actions that require on-going monitoring, worker supervision or implementation are regularly reviewed by HSEQ Manager, the action is taken if and when required, and records updated as required
- non-conformance records are maintained and stored following compliance requirements for relevant authorities
- non-conformance records will be made available to the relevant authorities if and when required by law.

Infringements:

- driver infringements are initially reported to (insert name here);
- infringements are then written up on a Non-Conformance/Corrective-Preventative Action Form;
- infringements are then managed as per the procedure for non-conformance.

COMPLAINTS

Drivers:

- complaints received from drivers shall be reported to and managed by HSEQ Manager
- complaints can be raised verbally on an informal basis in the first instance
- any complaints that cannot be resolved by a consultation on an informal basis shall then be formalised and submitted in writing, using the **RNSWF029 NCR Register**.
- formal complaints are then managed as per the procedure for non-conformance
- if complaints cannot reach satisfactory resolution following this procedure, then the Issue Resolution Procedure will be followed.

Public:

- complaints received from members of the public and/or customers shall be reported to and managed by management.

- complaints can be raised verbally on an informal basis in the first instance
- any complaints that cannot be resolved by a consultation on an informal basis will then be formalised and submitted in writing, using the **RNSWF029 NCR Register.**
- formal complaints are then managed as per the procedure for non-conformance.

Speed Limiter Checks:

- HSEQ Manager is responsible for ensuring that speed limiter checks are carried out as and when required by suitably qualified and experienced persons
- speed limited vehicles are regularly checked to ensure the speed limiter is working and meets the required standard. These checks may be carried out as part of scheduled servicing
- the results of all speed limiter checks are kept as records following compliance requirements for relevant authorities.

Annual Speed and Fatigue Risk Assessment:

- Management is responsible for carrying out an annual speed and fatigue risk assessment
- utilising consultation as required, appropriate and timely corrective actions are decided upon and recorded concerning any risks identified in the annual speed and fatigue risk assessment
- corrective actions are then undertaken in an appropriate manner and timeframe by the person/s responsible for the actions
- annual speed and fatigue risk assessment are maintained and stored as records. Drivers are consulted concerning an annual speed and fatigue risk assessment outcomes.

REVIEW

This procedure will be reviewed if:

- it is identified that there are changes in the workplace that affect the procedure
- there are changes to the IVMS that affect the procedure
- there is a change in the electronic monitoring system used that affects the procedure
- it is identified that the procedure is not effective
- there are legislative changes that affect the procedure
- there has been a serious safety breach or non-conformance incident
- there has been a notifiable event that has required notification to the authority.

This procedure will be reviewed at least annually.

2.6 MASS

PURPOSE

For the purpose of this policy, mass requirements relate to the:

- the gross mass of a heavy vehicle or combination, together with their loads
- mass on the axles or axle groups of heavy vehicles or combination
- weight of any freight container and its goods

POLICY

RNSW commits to complying with all applicable state and territory mass regulations. No-load will be placed on a heavy vehicle or combination that exceeds the relevant mass limits for that vehicle.

MASS PROCEDURE

Before loading:

- the driver must be presented with all relevant mass information before loading
- the person responsible for the loading (E.g. customer, loaders) must be made aware of the vehicle type and mass limits of the vehicle
- all transport and shipping documentation must be accurate and not contain any false or misleading information relating to the weight or dimension of the goods
- for containerised loads - A Container Weight Declaration must be provided to the person responsible for loading before loading vehicle
- before loading, the driver must examine and record information on the mass of the planned load, including individual components of the load where practicable (e.g. the mass of the load as marked on any item as advised by the supplier/manufacturer)
- the person/driver responsible for loading the vehicle must ensure a loading plan is prepared and implemented. The plan should consider the mass of the load, the location each component will be placed and the maximum applicable mass limits for the components on the vehicle.

Loading:

- if the planned load cannot be loaded to remain within the mass limits of the vehicle, then the load must:
  - not be loaded onto the vehicle; or
  - be modified to only load to the extent in compliance with the vehicle mass limits
- during loading the driver is responsible for directing the loader to position the load according to his vehicle axle mass limits
- drivers maintain the authority to request adjustments to the load.

Before departure:

- all loaded vehicles must be:
  - weighed before departure to ensure correct axel weight mass limits; or
  - the mass of the loaded vehicle is calculated using known Gross Vehicle Mass (GVM), axle limits and applicable shipping and transport documentation
- no vehicle is to commence a trip if mass limits have been exceeded during loading;
- drivers must not transport a freight container unless the driver is provided with a Container Weight Declaration;
- the gross mass of the load must be placed on the vehicle in line with legal axle mass limits.

During the delivery cycle:

- all mass limits as above will be adhered to throughout the delivery cycle, I .e.as freight is removed or added.

2.7 DIMENSION

SCOPE

For the purposes of this policy, dimension requirements relate to the height, width, length, and overhang of a heavy vehicle or combination, and its load.

POLICY

RNSW commits to complying with all applicable state and territory Dimension regulations. No vehicle combination or load placed on a heavy vehicle or combination will exceed the relevant prescribed dimension limits for that vehicle.

All parties to the CoR must comply with all dimension related regulations.

DIMENSION PROCEDURE

Before loading:

- the driver must be presented with all relevant dimension information before loading;
- the person responsible for the loading (E.g. customer, loaders) must be made aware of the vehicle type and dimension limits of the vehicle;
- all transport and shipping documentation must be accurate and not contain any false or misleading information relating to the height, width or length of the goods;
- before loading, the driver must examine and record information on the dimensions of the planned load, including individual components of the load where practicable (e.g. the dimension of the load as marked on any item as advised by the supplier/manufacturer).

Loading:

- if the planned load cannot be loaded to remain within the dimension or overhang limits of the vehicle, then the load must:
  - not be loaded onto the vehicle; or,
  - be modified to only load to the extent in compliance with the vehicle dimension limits;
- during loading the driver is responsible for directing the loader to position the load according to his vehicle limits;
- the overall height of a loaded vehicle must be safely lower than the height of any obstruction that may be encountered on the transport route (e.g. bridge or overhead wires);
- drivers maintain the authority to request adjustments to the load.

Before departure:

- all loaded vehicles must be:
  - inspected before departure to ensure the load does not exceed the dimension limits of the vehicle; and,
  - checked to ensure the load is securely fastened to prevent movement that may cause a load to exceed a dimension or overhang limit;
- no vehicle is to commence a trip if dimension limits have been exceeded during loading.

During the delivery cycle:

- all dimension limits as above will be adhered to throughout the delivery cycle, I .e.as freight is removed or added;
- regular checks will be implemented to ensure the load has not shifted in a manner that causes a breach of the dimension limits;

Consider any changes in the planned route does not contain obstructions that may cause contact.

2.8 LOAD RESTRAINT

PURPOSE

For the purposes of this policy, load restraint refers to the positioning and restraint of any part of a load on a vehicle or combination and, loads within containers.

POLICY

RNSW commits to complying with applicable state and territory load restraint regulations and recommendations. All loads placed on a heavy vehicle or combination will be restrained in a manner that meets the applicable regulations. All parties to the CoR must comply with all load restraint regulations.

LOAD RESTRAINT PROCEDURE

Loading:

- if the planned load cannot be loaded in a manner that allows for safe, secure restraint, then the load must:
  - not be loaded onto the vehicle; or,
  - be modified to only load to the extent that it can be safely restrained and prevented from moving during transit;
- during loading the driver is responsible for directing the loader to position the load so that it can be safely restrained;
- all loads must be placed in a manner that does not cause the vehicle to become unstable during transit;
- all methods of restraint must comply (at a minimum) with the (Insert Load restraint guide here, e.g. National Transport Commission's 'Load Restraint Guide' (Second Edition, 2004);
- drivers maintain the authority to adjust the load to permit secure restraint;
- all loads must appropriately be restrained with appropriate restraint equipment that meets performance standards;
- do not use tarpaulins or curtain sides as the sole form of restraint.

Before departure:

- all loaded vehicles must have loads securely fastened to prevent movement that may cause a load to:
  - exceed a dimension or overhang limit
  - cause a loss of stability for the vehicle or
  - fall from the vehicle
- no vehicle is to commence a trip if loads are unsecured

During the delivery cycle:

- all restraint rules as above will be adhered to throughout the delivery cycle, I .e.as freight is removed or added;
- regular checks will be implemented to ensure the load has not shifted and remains securely restrained;
- drivers will drive in a manner that considers changes in speed, direction or slope that may cause a load to shift.

2.9 TRAFFIC MANAGEMENT

DEFINITIONS

Traffic Management: The management of powered mobile plant/vehicles and their immediate environment, with a strong focus on the interactions with pedestrians while on site.

Traffic: All vehicles, powered mobile plant or other mobile equipment that can cause harm to people or damage infrastructure.

SCOPE

This policy applies to all workers, including contractors of RNSW who may be exposed to risk interactions with powered mobile plant/vehicles on site.

POLICY

RNSW acknowledges that the effective management of traffic is critical to the safety of people in the workplace.

We are committed to preventing injuries caused by powered mobile plant/vehicle interactions with people will endeavour to eliminate or reduce the number and severity of injuries caused by powered mobile plant/vehicle interactions.

This will be achieved by implementing clear traffic management processes to manage hazards and the associated risks arising from these interactions. And to establish controls to minimise the risk of personal injury and damage due to those interactions.

We have implemented strategies to minimise the risk of worker injury from traffic interactions, including:

- developing and implementing a Traffic Management Plan (TMP)
- designating responsibilities for people managing or interacting with traffic in the workplace
- developing control measures for expected interactions (including temporary hazards) where operations/work activities force changes to the flow of either pedestrian or other traffic
- instructions/procedures for controlling traffic (including emergencies)
- training workers in traffic management control measures

RESPONSIBILITIES

We are responsible for ensuring that:

- the identification of all traffic movement paths in the workplace
- risk assessments are carried out for all traffic movement where there is a risk of interaction with people or infrastructure
- adequate and appropriate training is provided to workers concerning traffic management and operation of any plant or vehicle
- traffic management procedures are monitored and reviewed as required
- a TMP is developed and put into place
- allocation of resources for effective traffic management

Supervisors are responsible for ensuring:

- control measures are inspected and maintained
- permanent and temporary warning signs are in place and visible
- access ways are kept clear
- only undamaged signs are used
- weekly inspections are recorded
- training needs are identified
- workers/subcontractors to attend training

Workers/subcontractors have a responsibility to:

- assist and cooperate with the identification of traffic management issues in the workplace
- attend traffic management training when required
- ensure that they know how to use equipment safely and that they correctly use all equipment
- are licensed to use the plant or vehicle they are operating
- respect all traffic management rules and procedures

TRAFFIC MANAGEMENT PROCEDURE

Risk Assessment

The following conditions are to be addressed within the TMP:

- entering and exiting work site from adjacent roads. (including reversing)
- entering and exiting buildings (warehouses etc.)
- delivery points
- loading and unloading points
- reversing manoeuvres within the work area
- transit through the work area adjacent to personnel and other hazards
- parking areas
- speed limits
- collision points (pedestrian's regular routes and where they overlap with powered mobile plant and vehicles

Traffic management hazards and risk will be identified by:

- observing traffic movement
- hazard reports
- seeking worker input
- consulting with individuals with specialised knowledge and skills if required

All risk assessments will be documented and take the following risk factors into account:

- the actual/predicted path of pedestrian and traffic movement
- the risk of interaction of vehicles and pedestrians (frequency and how dangerous)
- the strategy for placement of signs, barriers, or other traffic guides
- short term traffic management
- emergencies

Risk controls are reviewed whenever:

- control is no longer effective
- any change is likely to introduce new or different hazards that current controls will not adequately address
- a new hazard or risk is identified
- results of consultation indicate a review is needed

VEHICLE MOVEMENTS

The team will plan and develop procedures for all traffic movement based on the risk assessment.

Types of vehicle movements may include:

- delivery and dispatch of plant/equipment (heavy vehicle)
- frequent regular traffic of clients, workers, subcontractors' vehicle (light vehicle)
- movement at the workplace of plant/equipment (e.g. forklifts)
- deliveries/dispatch of materials, supplies (loading and unloading areas)

Planning traffic management:

- traffic management in the workplace will be carefully planned before work starts. Planning will involve identifying the hazards, assessing the risks and determining appropriate control measures by engaging with all workers involved in the work as necessary
- specific control measures must be implemented before using powered mobile plant near overhead power lines or underground utilities

Worker training and qualification:

- workers responsible for the management, operation, use and maintenance of traffic management measures requiring certification hold current operator's licenses and are fully trained and competent as required by the relevant Authorities
- workers must be trained to safely deploy or operate traffic management measures by a person who is suitably competent/experienced in its use
- the workers must be able to demonstrate the safe use of any equipment under supervision before being allowed to undertake traffic management work unsupervised. E.g. radios, traffic signals or signs

MINIMISING VEHICLE MOVEMENTS

Traffic movement around the workplace will be minimised as much as possible. This will be achieved where practicable by:

- controlling entry/exit to the work area by planning or engineering processes (e.g. gates, signage, speed control)
- developing storage areas, so delivery vehicles do not have to cross the at the workplace
- scheduling work processes to minimise the number of vehicles operating at the same time
- scheduling work processes to minimise the number of vehicles operating while people are moving through an area (e.g. start and finish of shifts)

PARKING AREAS

Where practicable, parking areas will be designed to:

- be situated between the access point of the road and the work area;
- not require passing through busy work areas
- be clearly marked and sign-posted for visitors
- be well-lit and provide an unobstructed view
- be situated away from regular traffic pathways
- utilise pathways leading to and from parking areas which are isolated from vehicle pathways (separate by using a barrier or administrative control, e.g. flagging, hazard netting or physical barrier)
- have clearly signed crossing points where a pedestrian pathway crosses a traffic pathway

REVERSING VEHICLES

Where possible, The TMP will avoid the need for vehicles to reverse. Where possible utilising one-way traffic flow. All reversing vehicles and powered mobile plant will:

- have vehicles will be fitted with reversing warning alarms
- will have enough mirrors or cameras to allow the driver to see clearly behind the vehicle
- ensure that for reversing vehicles/plant (e.g. delivery vehicles) a spotter wearing hi-visibility clothing assists/signals the driver
- ensure the driver always exits the vehicle at the earliest opportunity to assess the travel path before commencing reversing operations

TEMPORARY TRAFFIC CONTROL

Where temporary road traffic control is required (e.g. when providing temporary road bypass for oversize loads etc.):

- approvals and permits are sought from the local council and/or state road transport departments where necessary
- a TMP is developed for the temporary works (this can be a separate plan to the Construction TMP if required)
- only accredited traffic controllers are to perform traffic control duties
- all traffic control measures put in place must be implemented as per AS 1742.3–2009: Manual of Uniform Traffic Control Devices, Part 3: Traffic Control for Works on Roads ('AS 1742.3-2009') or other requirements as per permit conditions;
- traffic controllers must have the required accreditation to perform traffic control duties
- traffic controllers must have sufficient experience to set up and control traffic safely and efficiently

Powered mobile plant/vehicles:

- will be operated safely
- only licensed/certified and competent workers are to operate vehicles/plant
- will comply with defined speed limits and directions
- pre-start safety checks must be conducted for vehicles/plant
- damaged or faulty plant/machinery must not be used and reported to your Supervisor or Manager immediately
- will adhere to all traffic signs and directional markings
- a moving vehicle will never be mounted or dismounted from. (Never ride on or carry passengers unless in an approved seating position (no seat-no ride!)
- unload/load vehicles/plant only in designated areas
- park vehicles/plant only in designated areas
- switch off vehicle/plant if unattended
- do not operate vehicles/plant in defined pedestrian areas
- stop and continue at walking speed when entering blind corners
- complete incident/accident reports as appropriate

UNCONTROLLED MOVEMENT OF VEHICLES AND POWERED MOBILE PLANT

To prevent uncontrolled movement always ensure:

- risk assessment is undertaken before working on a vehicle
- keys are removed from the vehicle's ignition and secured
- the parking brake is on
- wheels are chocked on both sides of the vehicle using serviceable purpose-built chocks
- work is undertaken on a flat even surface capable of bearing the point load of any jacks/lifting equipment or ramps
- a lockout system or warning sign is in place to prevent the vehicle from being started, or the vehicle or any part of it being inadvertently moved
- powered mobile plant attachments are fully lowered before starting work
- for work under heavy vehicles, ensure appropriate load support is used (e.g. stands or lifting devices).
- Do not rely on a portable hydraulic system to hold any part of equipment in a raised position. Always use installed lift brace equipment and/or suitable SWL blocks/jacks

2.10 MAINTENANCE

PURPOSE

For the purposes of this policy, maintenance refers to the upkeep of all vehicles and associated plant and equipment in good mechanical condition.

POLICY

RNSW commits to maintaining safe, reliable roadworthy transport vehicles and associated plant and equipment in good mechanical condition. Faults will be noted, diagnosed and repaired whenever they arise. The organisation will inspect, repair and maintain all vehicles and ancillary equipment under their control.

MAINTENANCE PROCEDURE

All vehicles will be regularly monitored, and the following procedures will apply:

- daily vehicle checks
- planned services and maintenance
- regular roadworthiness inspections
- fault reporting and rectification
- compliance with in-house safety

Daily Pre-Operational Checklist

All drivers must complete a daily pre-operational inspection of their vehicles using the **RNSW019 Driver Declaration Prestart Form**.

Drivers are responsible for checking the condition of their vehicles – from roadworthy issues to faults and missing or broken elements.

Drivers are to use the checklist provided as part of this policy. Once completed, checklists are to be handed to your supervisor at regular intervals (at the end of the week).

Drivers must:

- report any defects immediately
- never operate a vehicle in need of repair
- never operate a vehicle that has not been pre-start checked
- ensure only authorised and trained personnel make repairs

Drivers must ensure that the vehicle they are responsible for is equipped with required emergency equipment. All vehicles or vehicles contracted by the company must be equipped with a fully charged fire extinguisher, fuses, and warning equipment, including a reflective hi-vis vest. Drivers should not begin any trip unless the vehicle has all required emergency equipment.

In the event of a minor vehicle breakdown, drivers are authorised to perform small repairs. The company defines small repairs as the following:

- changing tyres
- replacing light bulbs and reflectors
- replacing fuses
- replacing filters

All vehicles must carry spare parts necessary for fast repairs of minor breakdowns. Drivers should see management to obtain sufficient and correct vehicle spare parts for their needs.

Vehicle Accident & Breakdown Procedure

In the case of breakdown, loss of load, or accident, please follow the emergency procedures and breakdown procedures outlined in the **RNSWPA002 Drivers Safety Plan**,

Planned Services and Maintenance

A complete record will be kept on each vehicle in its fleet. That record will include basic vehicle information, roadworthiness inspections, along with a listing of repair orders, procedures performed and, dates of maintenance.

2.11 DRUGS AND ALCOHOL

OBJECTIVE

To provide guidance on our zero-tolerance policy toward driving or carrying out non-driving tasks while under the influence of drugs or alcohol.

POLICY

RNSW maintains a zero-tolerance for driving and for carrying out other non-driving work tasks while under the influence of drugs or alcohol. For the purpose of this policy "workers" refers to drivers and other workers at RNSW.

A person may not drive or attempt to drive a motor vehicle while under the influence of alcohol or a drug (including some over-the-counter and prescription medicines)

Workers carrying out non-driving tasks must also not be under the influence of alcohol or drugs while at work.

DRUGS AND ALCOHOL

Police have the power to carry out roadside drug testing on any driver, rider or supervising licence holder, of a heavy vehicle. If the manner of your driving indicates you are impaired by alcohol or drugs, or you are involved in a fatal accident, police have the power to obtain blood and urine samples.

We have a zero-tolerance for driving or performing non-driving work tasks while under the influence of drugs – including stimulants and depressants. The only way to cure fatigue is to sleep and ensure sufficient rest before your shift.

Zero-tolerance means that any worker caught driving or working while under the influence of drugs/alcohol will face investigation and termination of employment.

RESPONSIBILITIES:

- we provide a workplace where there is an effective, ethical and equitable mechanism in place to prevent and respond appropriately to the unsafe use of drugs and alcohol
- all workers are trained and familiar with the Drug and Alcohol Procedure
- review of procedures is conducted as required.

Managers/Supervisors are responsible for:

- referring workers requesting assistance for drug and alcohol-related issues
- informing workers of the potential work-related problems that may arise from the use of drugs and alcohol
- informing workers of their responsibilities concerning workplace safety, conduct and performance
- managing and monitoring workers whose work performance or conduct is adversely affected by the misuse or abuse of drugs or alcohol
- providing information about referral to counselling, treatment and rehabilitation services where appropriate
- managing disciplinary action appropriate to the circumstances of individual workers if/and when required
- ensuring all workers, including contractors, are aware of and comply with this procedure.

Workers:

- workers, including volunteers and contractors, are not to undertake any work while under the influence of alcohol or other drugs
- workers aware of a change in the behaviour of co-workers, and have grounds to believe that person's ability to work safely may be impaired, must immediately report it to a supervisor or Health and Safety Representative. This is especially important if the affected worker is a driver who is intending to drive a vehicle while impaired
- if a worker is required to take prescribed medication and is concerned about the health and safety effects of this medication, they must discuss the concerns their manager to determine if there is a need to modify duties on a short-term basis, or if sick leave must be taken

REASONABLE SUSPICION PROCEDURE

1. Approaching a worker who may be under the influence:
    a. only management should approach a worker who may be under the influence. "Reasonable Suspicion" should be assessed before approaching any worker who is suspected of being under the influence
    b. care needs to be taken when making this judgement in case the worker is ill or injured, taking prescribed medication or in some other form of distress, which may account for their behaviour
    c. when approaching an apparently intoxicated worker, it can be more effective and less confronting to talk in terms of their approach to safety and general work performance rather than their alcohol or drug use
2. As far as is reasonably possible to discuss the matter with the worker in a private location away from other people
3. It will then be explained to the worker that they have been approached concerning the Drug **and** Alcohol Policy
4. It will be made clear that there is Reasonable Suspicion that the worker is impaired by drugs and/or alcohol
5. The worker will be allowed to explain the observed behaviour
6. After speaking with the worker, if Reasonable Suspicion is no longer held and no further action is required, the worker can return to duty
7. It will be clearly explained to the worker that refusal to submit to Reasonable Suspicion testing is a violation of this Procedure, which can lead to discipline, up to, and including, termination of employment
8. Where Reasonable Suspicion is confirmed, the worker will be advised that they are to leave the workplace. Under no circumstances will that worker be permitted to drive a vehicle
9. Suitable arrangements will be made to get the worker home safely
10. If drug or alcohol testing is not to be carried out:

a. the worker will be informed that they are to return to work unimpaired by drugs or alcohol on his/her next scheduled work period
b. the worker must report to management upon return to work before returning to their work duties;
c. a meeting will be arranged upon the worker's return to the workplace between the worker and management to enable consultation to occur regarding any monitoring and management of the worker, or disciplinary action, as per the applicable HR policy and procedure

11. Drug or alcohol testing:
    a. workers who are suspected of being under the influence of illicit drugs or alcohol while at work and deny this will be provided with the opportunity to undergo suitable testing by a medical professional. This testing will include blood and urine tests
    b. testing must be conducted following the relevant Australian Standards:
        - AS 3547-1997: Breath alcohol testing devices for personal use;
        - AS 4760-2006: Procedures for specimen collection and the detection and quantitation of drugs in oral fluids
        - AS/NZ 4308 Procedures for specimen collection and the detection and quantitation of drugs of abuse in urine
12. All health and medical information will be treated as strictly confidential. They will be stored following the complies with the Australian Privacy Principles.

Disciplinary Action: Workers whose behaviour has placed the safety of themselves and others at risk will be subject to disciplinary procedures per the relevant award and/or employment agreement.

This process will involve the conduct of an interview between the manager, worker and union representative *(if applicable)* or health and safety representative *(if applicable)*, a discussion of the unacceptable behaviour, offer of counselling assistance and verbal warning initially followed by written warning if the behaviour continues.

A further instance of concern within 2 years will result in a final warning and potentially termination of employment.

2.12 FALLS PREVENTION FROM VEHICLES

Drivers, packers and others may be required to work at heights e.g. loading docks, vehicle trays etc. RNSW is committed to providing a safe workplace and understands the importance of controlling risks when working at heights.

We will ensure all risks associated with falls from vehicles will be managed through identification of fall hazards, risk assessments where required, and implementation of suitable controls for the task, situation and location.

Workers, including contractors must ensure that the appropriate risk controls are always used.

Where there is a risk of a driver falling from a vehicle, a risk assessment will be conducted.

The risk assessment will consider:

- the nature and duration of the task
- the physical surroundings and conditions in which the task is undertaken
- tools and equipment required for task

Identified risks will be controlled using the highest level of risk control that is reasonably practicable.

Examples include:

- ground level tarping systems
- guardrails (on trucks and docks)
- suitable access ladders
- travel restraint systems (with suitable anchor points/cables)
- use of mobile work platforms

We are committed to providing training for drivers on the following:

- nature of the hazards associated with working at heights
- safe use of fall protection systems – including formal training in use of harnesses etc.
- emergency rescue procedures.

RESPONSIBILITIES

The Organisation has a specific obligation to manage the risk of a fall by a person from a vehicle under the WHS legislation. We will:

- ensure that appropriate procedures and supporting mechanisms/systems are in place in respect of falls from vehicles
- provide a safe means of access to and from vehicles
- minimise the risk of falls from a vehicle by providing a fall prevention device, fall arrest or a work positioning system as far as reasonably possible
- ensure that a falls emergency response and procedure are in place
- consult with workers and other relevant persons in regard to falls hazards, risks and control measures
- ensure that all workers are trained, competent and fully supervised at all times when there is a risk of falls while working with vehicles
- monitor and review fall prevention policies, procedures and emergency response as required

The Supervisor/WHS Manager is responsible to:

- ensure that appropriate procedures and supporting mechanisms/systems are followed in respect of falls from vehicles

- ensure that a falls emergency response and procedure are in place, are effective and all workers are trained and familiar with these procedures (including falls rescue procedure for appropriately trained workers)
- assist with risk assessments and other safe work procedures as required
- ensure that appropriate plant, equipment, signage and PPE is available and in good condition for use as per risk assessments and procedures
- ensure that appropriate falls emergency and rescue equipment is on-site, in good condition and available at all times when work is being carried out that involves work where falls from a vehicle hazards are present
- ensure that workers are adequately supervised at all times when working at height on vehicles
- ensure that no worker carries out work unsupervised by a trained and competent standby person when working at height, or working where there is risk of serious injury from a fall from a vehicle
- consult with workers and other relevant persons in regard to falls hazards, risks and control measures
- monitor and review fall prevention policies, procedures and emergency response as required

Drivers and other workers are responsible to:

- cooperate with reasonable directions and follow risk assessments and Safe Work Instructions where there is a risk of a fall from a vehicle
- notify manager/supervisor immediately if a new fall hazard is identified, making the area or vehicle safe using a temporary control before leaving the fall hazard unattended. Use a standby person if it is not possible to make the area or vehicle safe while the manager is notified, and corrective action taken to ensure persons are not placed at risk
- assist with the identification and control of slip, trip and fall hazards such as slippery surfaces, uneven surfaces, trip hazards, unstable surfaces in work areas (such as loading docks)
- use appropriate fall prevention devices, work positioning systems, fall arrest systems and PPE at all times when it is required as per the relevant safe work instructions and site procedures
- never work alone or unsupervised by a trained and competent standby person when working at height, or working where there is risk of serious injury from a fall from a vehicle
- attend training sessions and courses as required
- attend and actively participate in safety meetings and briefings where fall hazards, falls prevention and incidents are discussed
- be familiar with, understand and follow the Falls Prevention Policy, Falls Prevention Procedures and any emergency response

2.13 HAZARDOUS MANUAL HANDLING

Many injuries amongst drivers in the transport industry are related to hazardous manual handling and occur when not driving. RNSW is committed to eliminating or reducing the risk of hazardous manual task injuries.

POLICY

This policy covers any lifting, carrying, pushing, pulling or moving of objects during loading or unloading; and driving hazards such as repetitious movements, prolonged sitting and vibration that could result in Musculoskeletal Disorders or other injuries.

The organisation will endeavour to eliminate or reduce the number and severity of hazardous manual task or musculoskeletal injuries by:

- identifying hazardous tasks, which can include:
  - repetitive or sustained awkward postures
  - sustained movement or application of force
  - the application of high force (such as hitting something with a hammer)
  - exposure to sustained vibration (such as holding a steering wheel that vibrates when driving on rough road surfaces)
  - working with people or animals
  - handling unstable or unbalanced loads
  - handling dangerous loads (such as chemicals)
  - handling loads, which are difficult to grasp or hold
- conduct risk assessments
- implement controls using a hierarchy of controls
- monitor and review risk assessments

RESPONSIBILITIES

The Organisation is responsible for ensuring:

- the identification of driving and other tasks that could be assessed as potentially causing musculoskeletal injuries
- risk assessments are carried out for all identified tasks
- safe work procedures are in place to eliminate or reduce and control the risk of musculoskeletal injury to workers
- adequate and appropriate training is provided to workers
- hazardous tasks and related procedures are monitored and reviewed as required.

Workers have a responsibility to:

- assist and cooperate with the identification of tasks in the workplace that may cause musculoskeletal injuries
- attend training when required
- use correct procedures when required and follow safe working procedures when driving and performing loading/unloading tasks.

HAZARDOUS MANUAL TASKS PROCEDURE

Musculoskeletal risks will be identified by:

- observing tasks
- breaking tasks down where required
- hazard reports
- seeking worker input
- consulting with ergonomic or other persons with specialised knowledge and skills if required.

Risk Assessment

A risk assessment will be documented and take the following risk factors into account:

- posture
- duration and frequency
- environmental factors
- movements
- forces exerted

Controls will include the provision of:

- ergonomically correct seat with adjustable height, position and lumbar support and replacement when needed
- access steps and grab handles for entry/exit to/from cabin
- well-designed access steps/handholds to cargo areas

Training and instruction will not be relied upon to solely control the risk of musculoskeletal related injuries.

Risk controls are reviewed whenever:

- control is no longer effective
- any change is likely to introduce new or different hazards that current controls will not adequately address
- a new hazard or risk is identified
- results of consultation indicate a review is needed

3. ADMINISTRATION

3.1 INDUCTION

All drivers must undergo a worker induction when first engaged by the Organisation. The induction consists of:

- introduction to RNSW
- introduction to payroll, taxation requirements and other administrative matters
- overview of WHS and CoR policies and procedures including Code of Conduct for drivers
- read-through of this CoR Management Plan
- when and how to complete the required paperwork
- a short quiz to ensure that all policies/procedures are understood

3.2 TRAINING

All parties in the CoR will be required to participate in ongoing training. Training will include in-house or external training on important Health & Safety and CoR matters. All training will be competency-based, meaning that people will be assessed to determine they understood the training.

Training may include but is not limited to:

- defensive driving strategies
- fatigue management
- load restraint
- mass, dimension, loading assurance
- isolated/remote work
- additional driving licences (such as for transporting Dangerous Goods/Hazardous substances)

3.3 LICENSES

Before driving any vehicle, a copy of a valid Driver's Licence must be produced. A driver/operator must hold the appropriate licence for the vehicle being operated. A driver's licence must be held with the person or immediately available while operating any vehicle for RNSW.

It is the responsibility of the driver to ensure their licence is renewed as required. If you lose your licence, please notify your supervisor immediately.

A person **MUST NOT** operate a vehicle without a suitable licence. Failure to notify loss or suspension of your driver's licence will lead to termination of employment.

Medical certificates stating that you are safe to drive or setting out the conditions under which you can drive are usually required when you apply for or (or renew) a heavy vehicle driver licence.

Unlicensed drivers must not operate any vehicles. Any relevant person that knowingly allows unlicensed drivers to operate a vehicle for RNSW will face employment termination.

Spot checks of licences may be undertaken on a random basis.

3.4 LOGBOOKS AND DOCUMENTATION

A Drivers Logbook (Work Diary) is evidence that a driver's work and rest hours are compliant with the HVNL and that their fatigue is being managed.

Driver Logbooks must be maintained by all drivers of fatigue regulated heavy vehicles (i.e. GVM) of more than 12 tonnes who drive 100km or more from their home base or operate under basic fatigue management or advanced fatigue management.

It's important that logbooks are filled in correctly and per the HVNL, and ensure you are counting time correctly. Drivers must carry and complete a work diary to record their work and rest times. If you have a work diary exemption notice or permit, you must carry it in place of the work diary.

<u>What is a fatigue-regulated heavy vehicle?</u>

A fatigue-regulated heavy vehicle is a vehicle with a GVM of more than 12 tonnes. This includes a vehicle combination of a total GVM of more than 12 tonnes. A bus of more than 4.5 tonnes fitted to carry more than 12 adults, including the driver is also a fatigue-regulated heavy vehicle.

A vehicle built or modified to operate as machinery or equipment off-road and which is not capable of carrying goods or passenger by road is not a fatigue-regulated heavy vehicle. A motorhome is not a fatigue-regulated heavy vehicle

It is a legal requirement that you maintain a written record of your work-time hours. This provides a record of your work activity and enables enforcement officers to check compliance with the work-time rules.

Work Log Book fines are the responsibility of the driver. They will not be paid for by RNSW . All required Driver documentation must be completed, and all documents and records must be kept in clean and good order. Dirty, incomplete and/or damaged documents may be returned to you for further attention.

Drivers must carry their Work Logbook at all times and conform to the requirements of Regulation. The Work Logbook must include information such as:

- your name (initials and surname, or first and last name)

- the date the Logbook page starts on
- the time of day your Logbook page starts (times must be recorded either in the am/pm or 24-hour format);
- the registration number of each vehicle driven
- the start and finish distance recorder readings
- the start and finish times and location for all work-time hours
- the start and finish times for all your rest breaks and where you took them
- after taking any days off, you must record the dates of the days off in your Logbook on the first day back at work
- if you experience an unavoidable delay or emergency that causes you to exceed the work-time limits, you must note the event and the length of the delay in your Logbook.

The Logbook:

- must be signed and dated on each day sheet by the driver
- kept for three (3) years
- not contain any false entries, or be altered or tampered with in any way
- used only (1) Logbook for each driver

3.5 CODE OF CONDUCT

All workers and management must follow the Code of Conduct.

As a worker, you have a right to:

- be spoken to politely
- be treated with respect
- be treated fairly and courteously by colleagues and those outside the organisation
- be treated fairly in recruitment, training and promotion
- have your private life and commitments outside work respected
- have your point of view listened to and considered
- expect not to be harassed or intimidated at work and in particular have a right not to be harassed or intimidated because of race, gender, colour, ethnic or national origin, religion, disability, marital status, age or sexuality
- report bullying, harassment or intimidation and have your complaint properly investigated

As a worker, you have a responsibility to:

- act professionally in your dealings with colleagues - treat colleagues, as you would like to be treated
- consider others in the exercise of your duties
- try to find solutions and work through disagreements with others
- take responsibility for your own actions and behaviour
- take action if you witness or are made aware of any improper conduct, including any act of harassment or discrimination
- not to discriminate against persons because of their race, gender, colour, ethnic or national origin, religion, disability, marital status, age or sexuality
- not to put pressure on others to discriminate unlawfully
- ensure that your behaviour (and your appearance at work does not cause embarrassment or reflect negatively in a way that could hurt or damage the reputation of RNSW.

3.6 REPORTING

All drivers must report the following to their supervisors immediately:

- any physical or psychological condition, injuries or illness that may impact on their driving ability
- loss, suspension or cancellation of driver's licence
- traffic infringements or fines received while performing work
- delay in delivery times
- requirements for agreed travel route to be changed
- sick days/hours
- break-down
- vehicle accident
- injuries sustained while performing work for us
- any damage to the vehicle.

3.7 INCIDENT/INJURY REPORTING

In the incident of an injury or incident occurring, obtain first aid in the case of a minor injury and depending on the severity obtain medical aid. Notify your supervisor as soon as possible.

Management will be responsible for notifying and actioning any Notifiable Incidents to the appropriate authority.

Ensure forms provided to you are completed accurately, and any items used from your first aid kit are recorded so they can be replaced. If you do not have an injury reporting form with you, contact your supervisor, who can complete the form on your behalf.

Note: An incident includes a near miss.

3.8 HAZARDOUS SUBSTANCES/DANGEROUS GOODS TRANSPORTING

Before transporting hazardous substances, the driver must:

- hold a driver's licence for the class of vehicle which will carry the hazardous substances
- hold a licence to carry hazardous substances
- have successfully completed an approved training course
- submit a medical certificate
- have a satisfactory driving record

Ensure the type of vehicle is suitable for the hazardous substances being loaded. Ensure paperwork is correct and placards (transport class diamonds) are displayed on the vehicle.

Ensure hazardous substances are not transported in areas where they are prohibited – such as tunnels.

- ensure all documents relating to the vehicle, and the load, are available for inspection by police or inspectors, e.g. Driver's licence
- drivers and vehicle Logbooks
- load manifest
- Safety Data Sheets (SDS)
- emergency procedure